

**CHAPTER cvii.**

An Act to extend the time for the construction of certain waterworks authorised by the Nelson Local Board Act 1888 for protecting the water supply from pollution and to make better provision in regard to the supply of water and for other purposes. [21st July 1903.]

A.D. 1903.

WHEREAS the mayor aldermen and burgesses of the borough of Nelson (in this Act called "the Corporation") are the owners of certain waterworks and are supplying with water the borough of Nelson in the county of Lancaster and neighbourhood under and by virtue of various Acts of Parliament (including the following local Acts and Orders) namely :—

Nelson Water and Gas Act 1866;

The Orders relating to Nelson confirmed by the Local Government Supplemental Act 1871 (No. 4) and the Local Government Board's Provisional Orders Confirmation Act 1873 (No. 5) respectively;

Nelson Local Board Act 1879;

Nelson Improvement Act 1886;

Nelson Local Board Act 1888 :

And whereas the Corporation are empowered by the Nelson Local Board Act 1888 (in this Act referred to as "the Act of 1888") to construct the reservoir therein described as Reservoir No. 3 and the conduit commencing and terminating in the Ogden Water (being respectively the works numbered 3 and 6 in and authorised by the Act of 1888) and the period limited by that Act will expire on the seventh day of August one thousand nine hundred and three and it is expedient that the time so limited should be extended :

And whereas it is expedient that the further powers in this Act contained should be conferred upon the Corporation in respect of their water undertaking and that they should be authorised to borrow the moneys in this Act mentioned :

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And whereas the objects aforesaid cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the completion of the works authorised by the Act of 1888 and for other waterworks purposes and that such estimates amount to the sum of twenty-five thousand pounds :

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the third day of December one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Nelson Chronicle a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said Nelson Chronicle and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the seventh day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Nelson Corporation Act 1903.

Incorporation of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely :—

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the owner or
“reputed owner of any such house or of the agent of

“such owner” in section 44 of the Waterworks Clauses Act 1847; A.D. 1903.

(b) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts :

(2) The Lands Clauses Acts except—

The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement and except section 127 of the same Act.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

“The Corporation” means the mayor aldermen and burgesses of the borough of Nelson ;

“The borough” means the borough of Nelson ;

“The council” means the council of the borough ;

“The town clerk” means the town clerk of the borough ;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the borough ;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges and securities payable to bearer or any securities of the Corporation.

4. The period limited by the Act of 1888 for the construction and completion of the Reservoir No. 3 and the conduit commencing and terminating in the Ogden Water numbered respectively 3 and 6 in and authorised by the Act of 1888 is by this Act extended and those waterworks may be constructed and completed within ten years from the passing of this Act and on the expiration of that period the powers for making those waterworks or otherwise in Extension of time for construction of waterworks.

A.D. 1903. relation thereto shall cease except as to so much thereof as is then completed.

Part II. (Extension of time) of the Railways Clauses Act 1863 is hereby incorporated with this Act and shall for the purposes of this Act be read and have effect as if the expression "railway and works" included the said reservoir and conduit and as if the expression "company" included the Corporation.

Power to purchase and hold lands and exercise powers for protection of waters and waterworks.

5. For the purpose of protecting their waters and waterworks against pollution fouling contamination or injury the Corporation may by agreement purchase take on lease and acquire any lands within the drainage area of the reservoirs and works authorised by the Act of 1888 and may hold such lands and any other lands which may have been acquired for the purposes of their water undertaking within such area prior to the passing of this Act so long as they shall deem it necessary or expedient for the purposes aforesaid Provided that the Corporation shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their waterworks or authorised by this section.

The Corporation may in and upon the lands which they have acquired or may acquire within the said area construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to impound or take in the said drainage area from being polluted fouled or contaminated.

Reservation of water rights &c. on sale.

6. The Corporation may sell and dispose of any lands acquired by them for or in connexion with their water undertaking and not for the time being required for that purpose and on selling any such lands may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Lease of lands in drainage area.

7. The Corporation may grant leases of any of the lands in the said drainage area for the time being belonging to them or any right or interest in or over such lands for such terms and at such rents and subject to such covenants and conditions as they may

think fit but such leases shall contain such covenants as the Corporation deem necessary or expedient for the prevention or regulation of any act or thing tending to the pollution of any waters which the Corporation are authorised to impound or take within the said drainage area or tending to the injury of the water-works of the Corporation in that area and every such lease shall contain a proviso for re-entry in case of non-payment of rent or breach of any of the lessees' covenants.

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8.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction
on taking
houses of
labouring
class.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

9. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the said drainage area with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by that Act authorised to be diverted collected and appropriated by the Corporation flowing to upon or from such lands directly or derivatively into the reservoirs and works of the Corporation.

Power to
agree as to
drainage of
lands &c.

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Byelaws for
preventing
pollution of
water.

10.—(1) The Corporation may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks within the Ogden Valley and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

(2) The byelaws made under this section shall be in force within the area from or through which the said waters flow or within so much of that area as may be defined in the byelaws.

(3) The provisions with respect to byelaws to be made by an urban authority contained in sections 182 to 185 of the Public Health Act 1875 shall apply to byelaws made by the Corporation under this section.

(4) All byelaws made under this section shall be subject to the approval of the council of every district comprising any part of the area within which it is proposed that they shall be in force Provided that such consent shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

(5) The Corporation shall pay compensation to the owners and occupiers of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section who shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Supply by
meter in
certain cases.

11.—(1) The Corporation shall not be required to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier as a warehouse or for any trade or manufacturing purpose for which water is required.

(2) Where the Corporation refuse to supply with water any building referred to in this section otherwise than by measure they shall on the application of the occupier of such building supply the same with sufficient water for domestic purposes at a rate not exceeding one shilling and sixpence for every thousand gallons and the moneys payable to the Corporation under this section shall be recoverable in the same manner as rates due to the Corporation for water Provided that the Corporation shall not be compelled to afford to any premises a supply of water by measure for a less sum in any one quarter of a year than the amount of the rate which

would have been payable in respect of such premises for a supply of water otherwise than by measure. A.D. 1903.

12. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of small houses.

13. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Corporation not bound to supply several houses by one pipe.

14. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation.

Notice of discontinuance.

15.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be

A.D. 1903. — recoverable by the Corporation as the water rates in respect of the premises are recoverable.

(4) Section 39 (Power to make regulations to prevent waste of water) of the Nelson Water and Gas Act 1866 is hereby repealed except that any regulations made thereunder and in force at the time of the passing of this Act shall continue in force until byelaws under this section shall have been made and confirmed or until the expiration of one year from the passing of this Act whichever event shall first occur.

Power to
sell or let
meters.

16. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Corporation to let for hire any water fittings to any person supplied by them with water.

Notice to
Corporation
of connect-
ing or dis-
connecting
meters.

17. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

18. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a fine not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained:

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed

or used water of the Corporation the Corporation may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

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19. The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

Power to supply materials.

20. The Corporation may on the application of the owner or occupier of any premises within the limits of supply of the Corporation abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply.

Power to lay pipes in streets not dedicated to public use.

21. The Corporation may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply of the Corporation to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would

Contracts for supplying water in bulk.

A.D. 1903. — interfere with the supply of water for domestic purposes within the limits of supply of the Corporation.

Power to borrow.

22.—(1) The Corporation may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say) :—

(a) For the construction and completion of the Reservoir No. 3 authorised by the Act of 1888 the sum of fifteen thousand pounds :

(b) For the construction of filters the laying down of water mains and other waterworks purposes the sum of ten thousand pounds :

(c) For the payment of the costs charges and expenses of this Act as herein-after provided such sum as may be necessary.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sum or sums of money for waterworks purposes as the Local Government Board may sanction.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of their water undertaking and the district fund and general district rate or either of such securities.

Certain regulations of Public Health Act 1875 as to borrowing not to apply.

23. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they have borrowed under this Act shall not be reckoned.

Mode of raising money.

24. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions of Public Health Act as to mortgages to apply.

25. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under this Act.

Periods for repayment of money

26. The Corporation shall pay off all money borrowed by them under this Act within the respective periods (in this

Act referred to as “the prescribed periods”) following (that is A.D. 1903.
to say):—

As to money borrowed for the purposes (a) mentioned in the borrowed hereunder.
section of this Act the marginal note whereof is “Power to borrow” within fifty years from the date or dates of borrowing the same :

As to money borrowed for the purposes (b) mentioned in the said section within thirty years from the date or dates of borrowing the same :

As to money borrowed for the purpose (c) mentioned in the said section within five years from the date or dates of borrowing the same :

As to moneys borrowed with the sanction of the Local Government Board within such period not exceeding sixty years as that Board may sanction.

27. The Corporation shall pay off all money borrowed by Mode of payment off of money borrowed.
them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and subject to the provisions of this Act the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

28.—(1) Any sinking fund for the repayment of money Sinking fund.
borrowed or to be borrowed by virtue of this Act shall be formed and maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with the accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately

A.D. 1903. invested in statutory securities the Corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

(12) The provisions of this section shall so far as they are applicable and with the necessary modifications extend and apply to any sinking funds commenced before the passing of this Act for the repayment of any money borrowed under the Act of 1888.

29. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of
lender from
inquiry.

30. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or

Corporation
not to regard
trusts.

A.D. 1903. — transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appointment
of receiver.

31.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to re-
borrow.

32. If the Corporation pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed moneys they may re-borrow the same but all money so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing.

Return
respecting
sinking fund
to Local
Government
Board.

33.—(1) The treasurer of the borough shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not

exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1903.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

34. All money borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable. Application of money borrowed.

35. The Corporation shall apply all moneys received by them in respect of any sales exchanges or disposition of lands under this Act or by way of fine or premium on any lease of any such lands in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation. Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board. Application of moneys from sale &c. of land.

36.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them by or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the Inquiries by Local Government Board.

A.D. 1903. — purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Audit of accounts.

37. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Costs of Act.

38. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys borrowed under the provisions of this Act.

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